

UPSC INDIAN POLITY

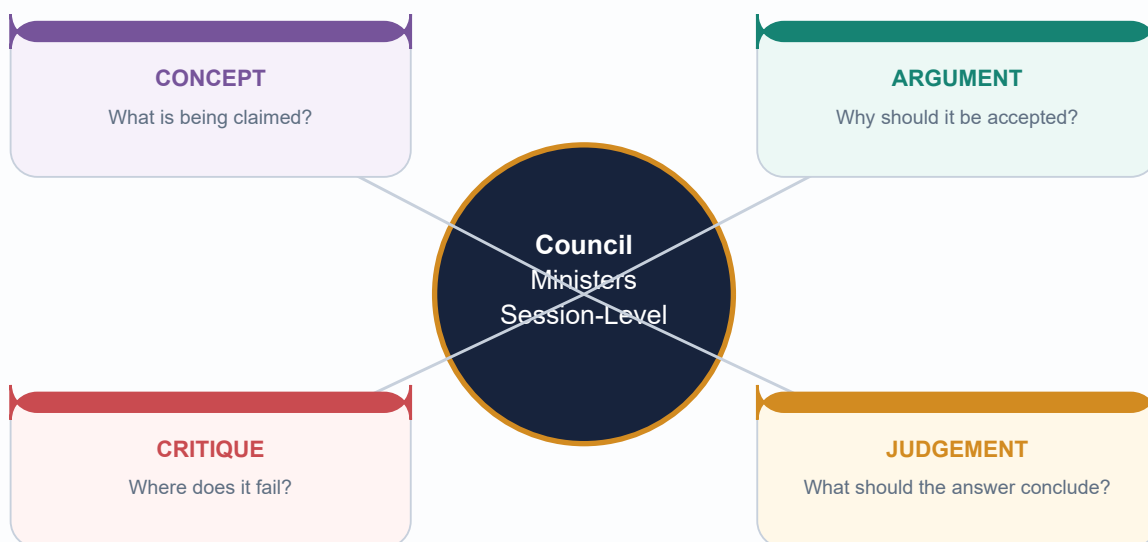
PM & Council of Ministers Session-Level Deep-Learning Notes

Indian Polity · Articles 74-75, 77, 78, 88 + Cabinet Committees · GS Paper II · Prelims + Mains
Integrated Basic + Advanced Course

13 deep-learning modules | Appointment, Powers, Responsibility, Cabinet, Committees

Visual maps, comparisons, UPSC traps and Mains frameworks

Sources: basic/PM-and-Council-of-Ministers.md + advanced/16_PM-and-Council-of-Ministers.md



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. The Real Executive: Article 74-75 and the Nominal-Real Split

GS-II Indian Polity

INTRO & ORIGIN

The President is the nominal head; the Prime Minister and the Council of Ministers form the real executive that actually governs.

Article 74: the Council of Ministers aids and advises the President, and that advice is binding and cannot be questioned in any court. Article 75: one no-confidence motion in the Lok Sabha sinks the whole ministry — collective responsibility.

REAL VS NOMINAL EXECUTIVE

Union Executive (Art 52-78)

President (nominal) Acts on binding Cabinet advice; see the companion President chapter	PM (real head) Appointed under Art 75; leader of the Lok Sabha majority
Council of Ministers 60-70 members, all 3 ranks; aids and advises under Art 74	Cabinet 15-20 senior ministers who actually decide, within the CoM

KEY DATA

Item	Value
PM's role	Real executive; head of government; leader of the Lok Sabha majority
Appointed by	President (Art 75) — no fixed procedure prescribed
May be from	Either House (Indira Gandhi, Deve Gowda, Manmohan Singh were Rajya Sabha members)
Non-MP limit	6 months (Supreme Court, 1997)
CoM cap	≤ 15% of Lok Sabha strength (91st Amendment, 2003)
Responsible to	Lok Sabha (collective responsibility)

MEMORY HOOK

Morley: 'primus inter pares' + 'keystone of the cabinet arch' | Jennings: 'the sun around which planets revolve' | Ambedkar: 'if any office matches the US President, it's the PM.'

MUST-KNOW FACTS

- 1. Article 74's ministerial advice to the President is binding and cannot be inquired into by any court.
- 2. Article 75's collective responsibility means one no-confidence motion brings down the entire Council of Ministers.
- 3. 91st Amendment, 2003 caps Council of Ministers strength at ≤ 15% of Lok Sabha strength.

MAINS ANGLE

Use the real-vs-nominal executive split as the entry frame for any Mains question on the Union executive.

STUDY LINK

Polity → Union Executive → PM and Council of Ministers Overview

HIGH

2. PM Appointment (Art 75): Convention and Presidential Discretion

GS-II Indian
Polity

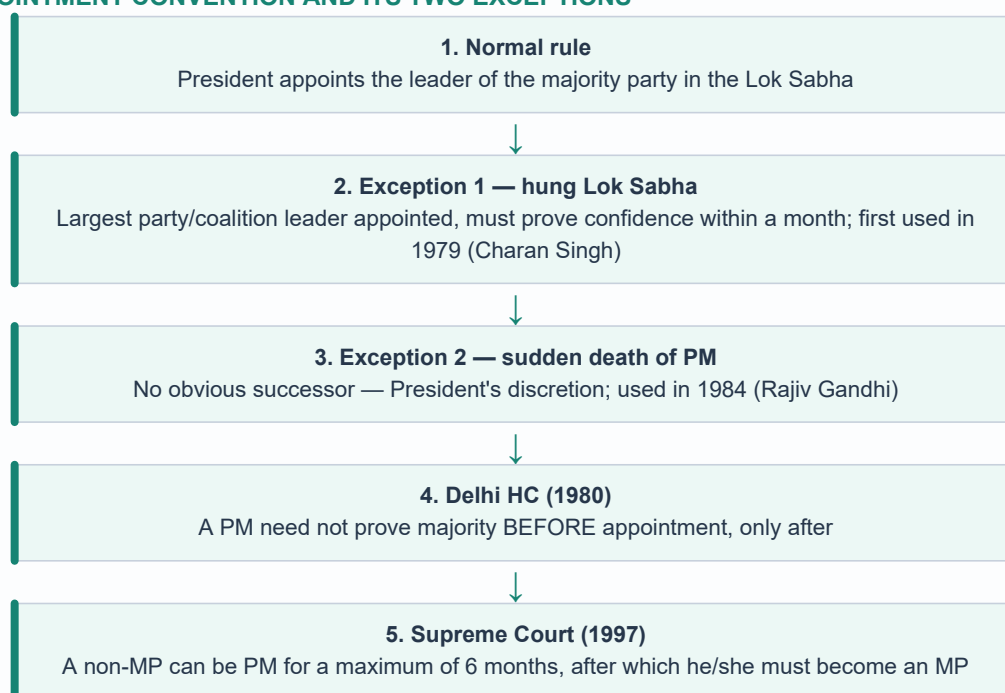
INTRO & ORIGIN

Article 75 says only that the PM is 'appointed by the President' — no specific procedure is laid down. Convention fills the gap.

KEY DATA

PM	House
Indira Gandhi (1966)	Rajya Sabha
Deve Gowda (1996)	Rajya Sabha
Manmohan Singh (2004)	Rajya Sabha

THE APPOINTMENT CONVENTION AND ITS TWO EXCEPTIONS



STATIC THEORY

- The UK convention requires the PM to come from the House of Commons; India's Constitution allows a PM from either House.
- The 1979 (Charan Singh) and 1984 (Rajiv Gandhi) episodes are the two concrete precedents for presidential discretion in PM appointment.

MEMORY HOOK

Hung LS → 1979 Charan Singh precedent | PM's sudden death → 1984 Rajiv Gandhi precedent | Non-MP PM → max 6 months (SC, 1997).

MUST-KNOW FACTS

1. Charan Singh (1979) is the precedent for presidential discretion in a hung Lok Sabha.
2. Rajiv Gandhi (1984) is the precedent for presidential discretion after a PM's sudden death.
3. A non-MP can be PM for a maximum of 6 months (Supreme Court, 1997), after which they must secure a seat in Parliament.

UPSC TRAPS

WRONG: The Prime Minister must always be a member of the Lok Sabha, as in the UK.

CORRECT: The PM may be from either House — Indira Gandhi, Deve Gowda and Manmohan Singh were all Rajya Sabha members.

WRONG: A non-MP can never become or remain Prime Minister.

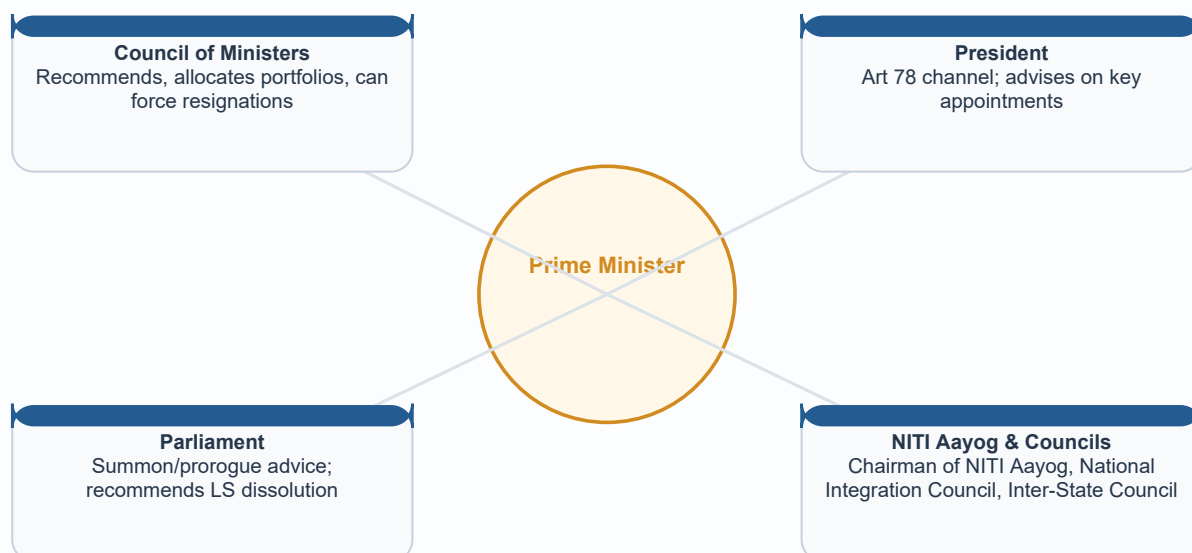
CORRECT: A non-MP can be PM for up to 6 months (Supreme Court, 1997), after which they must become a member of either House.

MAINS ANGLE

Examine the President's situational discretion in PM appointment through the 1979 and 1984 precedents.

STUDY LINK

Polity → Prime Minister → Appointment (Art 75)

HIGH**4. PM's Powers: Five Domains**GS-II Indian
Polity**THE PM AT THE CENTRE OF FIVE POWER DOMAINS**

KEY DATA

Domain	Highlights
Council of Ministers	Recommends ministers; allocates/reshuffles portfolios; can force a minister's resignation; chairs the CoM; his resignation/death dissolves the entire CoM
President	Principal channel of communication (Art 78); advises on appointments — AG, CAG, UPSC, ECs, Finance Commission
Parliament	Advises on summoning/proroguing; can recommend Lok Sabha dissolution anytime; announces government policies
Other bodies	Chairman of NITI Aayog, National Integration Council, Inter-State Council, National Water Resources Council
General	Chief spokesman of government; crisis manager; leader of the ruling party

MUST-KNOW FACTS

- Article 78 makes the PM the principal channel of communication between the Council of Ministers and the President.
- The PM's resignation or death automatically dissolves the entire Council of Ministers.
- The PM chairs NITI Aayog, the National Integration Council, the Inter-State Council and the National Water Resources Council.

MAINS ANGLE

Map the PM's five power domains onto a question about executive dominance in the Indian system.

STUDY LINK

Polity → Prime Minister → Powers and Functions

HIGH

5. Collective Responsibility (Art 75): The Bedrock Principle

GS-II Indian Polity

INTRO & ORIGIN

Collective responsibility is the single most important constitutional principle governing the Council of Ministers' relationship with Parliament.

HOW COLLECTIVE RESPONSIBILITY OPERATES



STATIC THEORY

- Individual responsibility is distinct: ministers hold office during the President's pleasure and are removed on the PM's advice.
- No legal responsibility exists in India (unlike Britain's counter-signature requirement) — courts cannot probe ministerial advice at all.

MEMORY HOOK

Collective (Art 75, to Lok Sabha) ≠ Individual (President's pleasure, on PM's advice) ≠ Legal (does not exist in India).

MUST-KNOW FACTS

1. Ambedkar resigned from the Council of Ministers in 1953 over the Hindu Code Bill — the textbook example of collective-responsibility dissent.
2. A single no-confidence motion in the Lok Sabha forces the resignation of the ENTIRE Council of Ministers, including Rajya Sabha members.

MAINS ANGLE

Collective responsibility in a coalition era — is Article 75 diluted when ministers represent different coalition partners?

STUDY LINK

Polity → Council of Ministers → Collective Responsibility (Art 75)

HIGH

6. Council of Ministers: Composition, Ranks and the 91st Amendment Cap

GS-II Indian
Polity

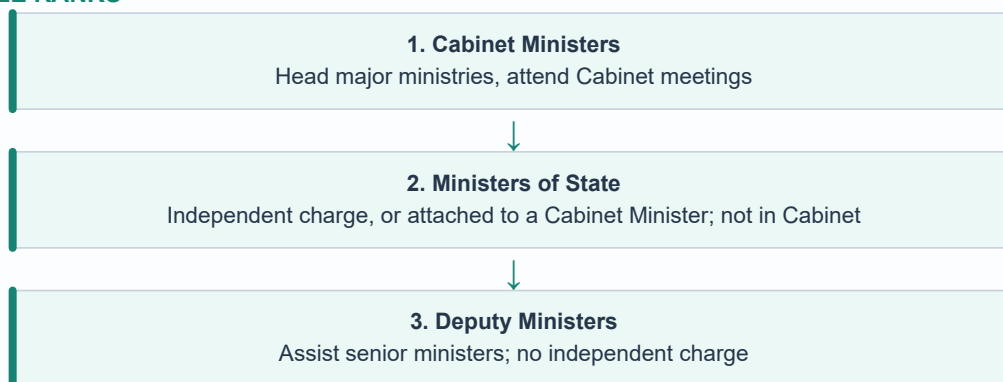
INTRO & ORIGIN

The Council of Ministers is organised into three formal ranks, with a hard numerical ceiling since 2003.

KEY DATA

Provision	Rule
Article 74	CoM headed by PM aids and advises the President; advice binding, not inquirable by courts
Article 75 (91st Amdt, 2003)	Total ministers capped at ≤ 15% of Lok Sabha strength; a member disqualified for defection cannot be a minister
Article 77	Government business is conducted in the President's name
Article 88	Ministers may speak in either House, but vote only in their own
Non-MP rule	6 months, same limit as applies to the PM

THE THREE RANKS



MEMORY HOOK

Cabinet Ministers → Ministers of State → Deputy Ministers | 91st Amdt = ≤15% of LOK SABHA, not both Houses.

MUST-KNOW FACTS

1. 91st Amendment, 2003 caps Council of Ministers strength at ≤ 15% of Lok Sabha strength, and bars a defection-disqualified member from becoming a minister.
2. Article 88 allows ministers to speak in either House but vote only in the House of which they are a member.
3. A 'Deputy PM' title is descriptive only — the Supreme Court upheld Devi Lal's 1990 oath on this basis; it carries no distinct constitutional powers.

UPSC TRAPS

WRONG: The 91st Amendment caps the Council of Ministers at 15% of the combined strength of both Houses.

CORRECT: The cap is 15% of the Lok Sabha's strength alone.

WRONG: Ministers can vote in whichever House they choose to speak in.

CORRECT: Under Article 88, ministers may speak in either House but can vote only in the House of which they are a member.

MAINS ANGLE

Assess whether the 91st Amendment's 15% cap has meaningfully curbed oversized ministries.

STUDY LINK

Polity → Council of Ministers → Composition and the 91st Amendment

HIGH

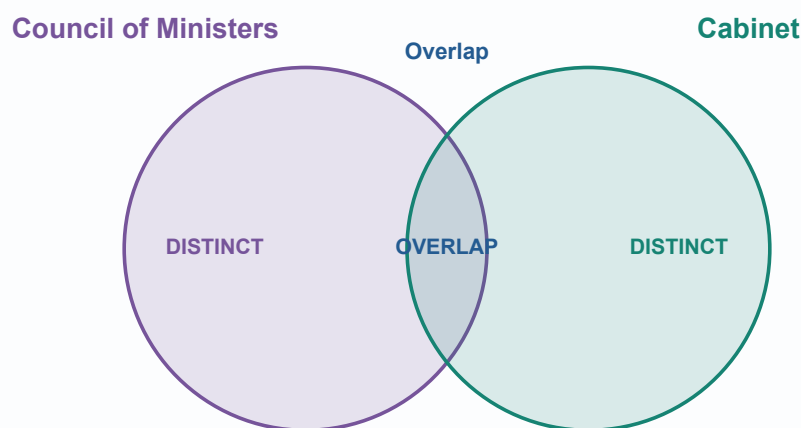
7. Council of Ministers vs Cabinet: The Crucial Distinction

GS-II Indian Polity

INTRO & ORIGIN

CoM and Cabinet are often used loosely as synonyms — they are constitutionally and functionally distinct bodies.

COUNCIL OF MINISTERS VS CABINET

**Council of Ministers**

- 60-70 members, all three ranks
- Never meets as a single body

Overlap

- Cabinet is a SUBSET of the Council of Ministers
- Both headed by the Prime Minister

Cabinet

- 15-20 senior ministers only
- Meets weekly; exercises real, collective decision-making power

The Cabinet is a smaller, senior body drawn from within the larger Council of Ministers — it decides in practice what the CoM holds in theory.

KEY DATA

Feature	Council of Ministers	Cabinet
Size	60-70 members, all 3 ranks	15-20, cabinet ministers only
Meets as a body?	Never meets together	Meets weekly, collective functions
Power	Powers 'in theory'	Exercises powers in practice; directs the CoM

STATIC THEORY

- Cabinet was originally not mentioned in the Constitution — it was inserted into Article 352 only by the 44th Amendment.
- This means Cabinet Committees themselves are entirely extra-constitutional, being creatures of the Rules of Business rather than the Constitution.

MEMORY HOOK

CoM (60-70, theory) □ Cabinet (15-20, practice, meets weekly).

MUST-KNOW FACTS

1. 'Cabinet' was inserted into the constitutional text only via Article 352 by the 44th Amendment — it is not in the original 1950 text.
2. The Cabinet meets weekly and functions collectively; the full Council of Ministers never meets as a single body.

UPSC TRAPS

WRONG: Council of Ministers and Cabinet are simply two names for the same body.

CORRECT: The Cabinet (15-20 senior ministers who actually decide) is a smaller subset of the wider Council of Ministers (60-70 members across all ranks).

WRONG: 'Cabinet' has been part of the constitutional text since 1950.

CORRECT: 'Cabinet' entered the text only via the 44th Amendment, in Article 352.

MAINS ANGLE

Has real decision-making power shifted so far into the Cabinet (and further into the PM's inner circle) that the wider Council of Ministers is now largely nominal?

STUDY LINK

Polity → Council of Ministers vs Cabinet

HIGH

9. Cabinet Committees: The Extra-Constitutional Architecture

GS-II Indian
Polity

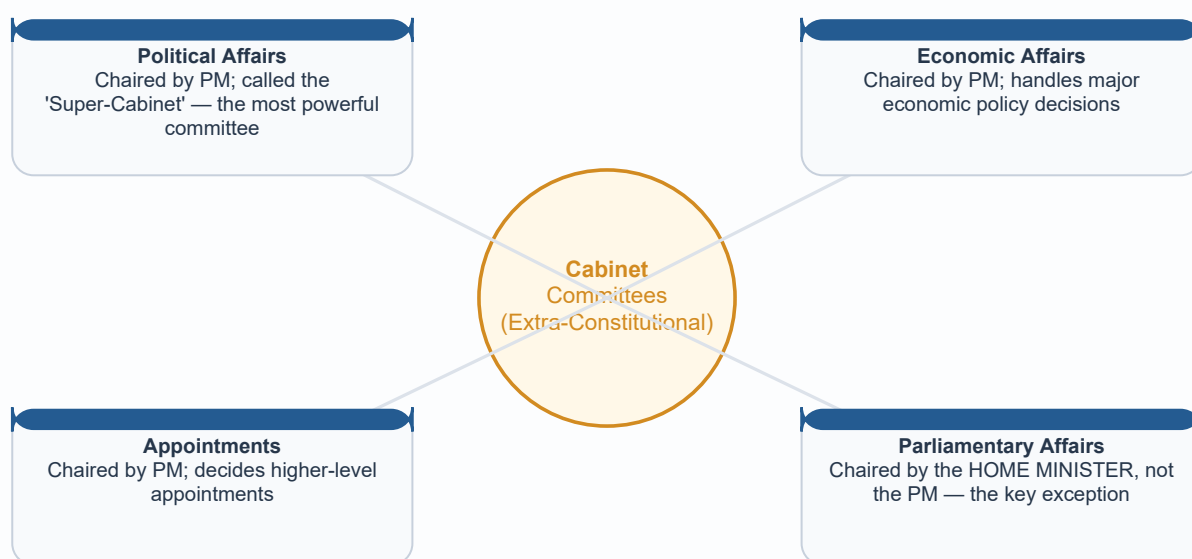
NEWS TRIGGER

The Cabinet Committee on Security (CCS) is the apex body cited during major national-security decisions — for example, Operation Sindoor and related ceasefire calls — making this committee's composition and role a live current-affairs anchor.

INTRO & ORIGIN

Cabinet Committees are created under the Rules of Business, not the Constitution — a distinctly extra-constitutional layer of executive machinery.

THE FOUR MOST POWERFUL CABINET COMMITTEES



KEY DATA

Feature	Detail
Legal basis	Rules of Business — extra-constitutional, standing and ad hoc
Size	3-8 members; mostly chaired by the PM
Powers	Sort out issues, formulate proposals AND take decisions (Cabinet can still review)
Present strength (2019)	8 committees: Political Affairs, Economic Affairs, Appointments, Security, Parliamentary Affairs, Accommodation, Investment & Growth, Employment & Skill Development

MEMORY HOOK

Political Affairs = 'Super-Cabinet' | Parliamentary Affairs = Home Minister chairs it, not the PM.

MUST-KNOW FACTS

1. Cabinet Committees are extra-constitutional — created under the Rules of Business, not the Constitution.
2. The Political Affairs Committee is called the 'Super-Cabinet' and is the most powerful Cabinet Committee.
3. The Parliamentary Affairs Committee is chaired by the Home Minister — every other major committee is usually chaired by the PM.
4. As of 2019, there were 8 standing Cabinet Committees.

UPSC TRAPS

WRONG: All Cabinet Committees, including the Parliamentary Affairs Committee, are chaired by the Prime Minister.

CORRECT: The Parliamentary Affairs Committee is chaired by the Home Minister; most others are chaired by the PM.

WRONG: Cabinet Committees are established directly by the Constitution.

CORRECT: They are extra-constitutional, created under the Rules of Business.

MAINS ANGLE

Cabinet committees and GoMs: efficient delegation of executive decision-making, or dilution of collective Cabinet responsibility?

STUDY LINK

Polity → Cabinet Committees →
Extra-Constitutional Architecture

HIGH

12. Verified PYQ Route: Cabinet System and Parliamentary Supremacy

GS-II Indian
Polity**INTRO & ORIGIN**

A directly verified Mains PYQ anchor connecting this chapter to the wider Parliament and Parliamentary System chapters.

STATIC THEORY

- 2024 GS-II Q3 (10 marks, 150 words) asks how the growth of the cabinet system has marginalised parliamentary supremacy.
- Answer route for this chapter: PM/Cabinet agenda control over legislative business → collective responsibility binding all ministers → party-whip effects reinforcing executive dominance in the Lok Sabha.
- Cross-link: use the Parliamentary System chapter for the complete verified-PYQ route, and the Parliament chapter for scrutiny correctives (question hour, committees) that check this dominance.

MUST-KNOW FACTS

1. The 2024 GS-II Q3 PYQ is the directly verified Mains anchor for the cabinet-vs-Parliament dominance debate.
2. Party-whip discipline, combined with collective responsibility, is the specific mechanism by which the Cabinet controls the Lok Sabha's legislative agenda.

MAINS ANGLE

2024 GS-II Q3 (10 marks, 150 words): How has the growth of the cabinet system marginalised parliamentary supremacy? Route: PM/Cabinet agenda control → collective responsibility → party-whip effects; cross-reference the Parliamentary System and Parliament chapters for the complete verified route.

STUDY LINK

Polity → PM and Council of Ministers →
Verified PYQ Cross-Link

MEDIUM UPSC RELEVANCE

MEDIUM

3. Oath, Term and the PM's Descriptive Role Tags

GS-II Indian
Polity

INTRO & ORIGIN

The PM's tenure is not fixed by any term limit — it depends entirely on retaining the confidence of the Lok Sabha.

HOW SCHOLARS HAVE DESCRIBED THE PM

Prime Minister's Constitutional Character

Lord Morley 'Primus inter pares' and 'keystone of the cabinet arch'	Ivor Jennings 'A sun around which planets revolve'
Harold Laski 'Pivot of the machinery' of government	Ambedkar 'If any functionary is to be compared with the US President, it is the PM, not the President'

KEY DATA

Item	Rule
Oath	Both office and secrecy oaths administered by the President
Term	Not fixed — holds office 'during the pleasure of the President', but cannot be dismissed while holding a Lok Sabha majority
Salary	That of an MP, plus a sumptuary allowance and other entitlements

MUST-KNOW FACTS

1. The PM's term is not fixed; tenure depends on holding the Lok Sabha's confidence, not on any calendar limit.
2. William Ivor Jennings' 'sun around which planets revolve' and Lord Morley's 'keystone of the cabinet arch' are the two most quoted role tags.

MAINS ANGLE

Use the Morley/Jennings/Laski/Ambedkar role tags to frame an answer on the PM's true constitutional stature.

STUDY LINK

Polity → Prime Minister → Oath, Term and Role Tags

MEDIUM

8. Kitchen Cabinet and Informal Power Structures

GS-II Indian
Polity

INTRO & ORIGIN

Beyond the Cabinet's formal structure lies an informal, extra-constitutional layer of power concentrated around the Prime Minister.

STATIC THEORY

- The Kitchen (or Inner) Cabinet is an informal body of the PM plus a few trusted colleagues, sometimes including outsiders with no formal ministerial position.
- This informal structure was especially powerful under Indira Gandhi, and comparable inner circles exist in the USA and the UK as well.
- It has no constitutional or statutory basis whatsoever — its influence flows entirely from the PM's personal trust and political style.

MEMORY HOOK

Kitchen Cabinet = informal, extra-constitutional, PM's personal trust circle — most visible under Indira Gandhi.

MUST-KNOW FACTS

1. The Kitchen Cabinet was at its most powerful and visible under Indira Gandhi's governments.
2. Comparable informal inner circles exist in the US and UK executive systems, not only in India.

MAINS ANGLE

"Indian government has become prime-ministerial rather than cabinet government." Examine using the Kitchen Cabinet phenomenon.

STUDY LINK

Polity → Council of Ministers → Kitchen Cabinet

MEDIUM**10. Groups of Ministers (GoMs) and the 2nd ARC Recommendation**

GS-II Indian Polity

INTRO & ORIGIN

Groups of Ministers are a further, more flexible layer of ad hoc coordination beneath the standing Cabinet Committees.

STATIC THEORY

- GoMs are ad hoc bodies formed to coordinate policy across ministries on a specific issue, distinct from the standing Cabinet Committees.
- The 2nd Administrative Reforms Commission (2nd ARC) urged selective use of GoMs, with clear time limits, to prevent them from becoming a permanent parallel decision-making layer.

MUST-KNOW FACTS

1. The 2nd ARC recommended selective use of Groups of Ministers, with defined time limits.

MAINS ANGLE

Do Groups of Ministers strengthen inter-ministerial coordination, or do they dilute Cabinet accountability by design?

STUDY LINK

Polity → Cabinet Committees → Groups of Ministers

MEDIUM

11. Integrated Power Map: PM, Council of Ministers, Cabinet and Committees

GS-II Indian Polity

INTRO & ORIGIN

A single consolidated view of how executive power narrows from the full Council of Ministers down to the PM's own inner circle.

KEY DATA

Layer	Size	Constitutional Basis
Council of Ministers	60-70	Articles 74, 75, 77, 88
Cabinet	15-20	Mentioned only via Article 352 (44th Amendment)
Cabinet Committees	3-8	Extra-constitutional (Rules of Business)
Kitchen Cabinet	A handful	No constitutional or statutory basis

THE NARROWING OF EXECUTIVE POWER



MUST-KNOW FACTS

- Executive power narrows in four visible layers: full CoM → Cabinet → Cabinet Committees → the PM's informal Kitchen Cabinet.
- Only the outermost layer (CoM) has explicit, extensive constitutional articles; the innermost layer (Kitchen Cabinet) has none at all.

MAINS ANGLE

Use this four-layer map to answer any question on the concentration of executive power around the Prime Minister.

STUDY LINK

Polity → PM and Council of Ministers → Integrated Power Map

MEDIUM

13. UPSC Analysis and Answer-Writing Framework

GS-II Indian
Polity

INTRO & ORIGIN

A closing framework converting this chapter's facts into Prelims recall and Mains answer structure.

ANSWER-WRITING ROUTING CHAINS

1. 'PM appointment discretion' questions

Art 75 convention → hung LS (1979 Charan Singh) → PM's sudden death (1984 Rajiv Gandhi)
→ SC 1997 6-month rule



2. 'CoM vs Cabinet' questions

60-70 vs 15-20 → 'in theory' vs 'in practice' → 44th Amdt inserted 'Cabinet' via Art 352



3. 'Prime-ministerial government' questions

Cabinet → Cabinet Committees → Kitchen Cabinet narrowing chain → 2024 PYQ on
parliamentary marginalisation



4. 'Collective responsibility' questions

Art 75 bedrock → Ambedkar's 1953 resignation → coalition-era dilution debate

STATIC THEORY

- Prelims recall order for this chapter: Article → who holds the power (PM/CoM/Cabinet/Committee) → size/composition → binding rule or limit.
- Every 'has power shifted to the PM' Mains question resolves through the same four-layer narrowing chain: CoM → Cabinet → Cabinet Committees → Kitchen Cabinet.

MEMORY HOOK

Article → Who Holds Power → Size/Composition → Binding Rule — the four-step recall chain for PM/CoM questions.

MUST-KNOW FACTS

1. The 91st Amendment (2003) and Article 88 are the two most-tested precise-number/rule facts in this chapter.
2. The 2024 GS-II Q3 PYQ is the highest-confidence verified Mains anchor for this chapter.
3. The CoM-vs-Cabinet distinction is the single most recurring UPSC trap zone in this chapter.

MAINS ANGLE

Consolidated Mains angles: (1) 'Indian government has become prime-ministerial rather than cabinet government' — examine. (2) Collective responsibility in a coalition era — is Article 75 diluted? (3) Cabinet committees and GoMs: efficient delegation or dilution of collective decision-making?

STUDY LINK

Polity → PM and Council of Ministers →
UPSC Answer-Writing Framework